

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emma Stydahr	Team: Squad #13	CCRB Case #: 202102464	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 02/26/2020 7:25 PM	Location of Incident: Outside of 703 Rosewood Street	18 Mo. SOL 4/12/2022	Precinct: 47		
Date/Time CV Reported Tue, 04/20/2021 1:08 PM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Tue, 04/20/2021 1:08 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Justin Venezia	12130	956316	E S U
2. SGT Robert Zeitoun	03552	947631	PBBX SU
3. PO Josue Batista	21940	962943	047 PCT
4. Officers			047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Collazo	21266	962988	047 PCT
2. SGT Victor Genao	04018	930207	PBBX
3. POM Giuseppe Gentile	09948	952773	SRG 2

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Robert Zeitoun	Abuse: Sergeant Robert Zeitoun stopped § 87(2)(b)	A . Unsubstantiated
B . SGT Robert Zeitoun	Abuse: Sergeant Robert Zeitoun threatened § 87(2)(b) with the use of force.	B . Unsubstantiated
C . PO Justin Venezia	Discourtesy: Police Officer Justin Venezia acted discourteously toward § 87(2)(b)	C . Exonerated
D . PO Justin Venezia	Abuse: Police Officer Justin Venezia threatened § 87(2)(b) with the use of force.	D . Substantiated
E . SGT Robert Zeitoun	Abuse: Sergeant Robert Zeitoun threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . SGT Robert Zeitoun	Discourtesy: Sergeant Robert Zeitoun spoke discourteously to § 87(2)(b)	F . Exonerated
G . SGT Robert Zeitoun	Abuse: Sergeant Robert Zeitoun threatened § 87(2)(b) with the use of force.	G . Substantiated
H . PO Josue Batista	Abuse: Police Officer Josue Batista frisked § 87(2)(b)	H . Exonerated
I . PO Josue Batista	Abuse: Police Officer Josue Batista searched § 87(2)(b)	I . Substantiated
J . PO Josue Batista	Abuse: Police Officer Josue Batista searched § 87(2)(b)	J . Substantiated
K . Officers	Abuse: Officers forcibly removed § 87(2)(b) to the hospital.	K . Exonerated

Officer(s)	Allegation	Inv. Div. Recommendation
L . SGT Robert Zeitoun	Discourtesy: Sergeant Robert Zeitoun spoke discourteously to § 87(2)(b)	L . Unsubstantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 20, 2021, § 87(2)(b) filed this complaint with the CCRB via email.

On February 26, 2020, at approximately 7:25pm, § 87(2)(b) was outside of 703 Rosewood Street in the Bronx, holding a baseball bat and a broom, when he was stopped by Sergeant Robert Zeitoun and Police Officer Justin Venezia, both of the 47th Precinct (**Allegation A: Abuse of Authority – Unsubstantiated**). Sgt. Zeitoun pointed his Taser at § 87(2)(b) (**Allegation B: Abuse of Authority – Unsubstantiated**). PO Venezia swatted the broom out of § 87(2)(b) hand and said, “Talk to me or you’re going to get Tased” (**Allegation C: Discourtesy – Exonerated; D: Abuse of Authority – Substantiated**). Sgt. Zeitoun said “You’re going to get Tased” twice (**Allegation E: Abuse of Authority: Unsubstantiated**). After § 87(2)(b) put the bat down, Sgt. Zeitoun said, “You make one move and I’m going to fucking Tase you” (**Allegation F: Discourtesy – Exonerated; Allegation G: Abuse of Authority – Substantiated**). Additional officers, including Police Officer Josue Batista of the 47th Precinct, arrived and PO Batista frisked and searched § 87(2)(b) (**Allegation H: Abuse of Authority – Exonerated; Allegation I: Abuse of Authority – Substantiated**). § 87(2)(b) was placed inside an ambulance, where PO Batista searched § 87(2)(b) bag (**Allegation J: Abuse of Authority – Substantiated**). § 87(2)(b) was transported to the hospital (**Allegation K: Abuse of Authority – Exonerated**). Sgt. Zeitoun allegedly called § 87(2)(b) a “motherfucker” three times throughout this incident (**Allegation L: Discourtesy – Unsubstantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) No arrest or summons resulted from this incident.

Body Worn Camera (“BWC”) footage of this incident was received from NYPD Legal. The footage is in IAs #58-62 (**Board Review 01-05**) and is summarized in IA #124 (**Board Review 06**). There is no other video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Robert Zeitoun stopped § 87(2)(b)
Allegation (B) Abuse of Authority: Sergeant Robert Zeitoun threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (**Board Review 07**) said he was looking for stray cats to feed while holding a wooden baseball bat tucked underneath his armpit. He denied wielding the bat in any other fashion. He did not speak or interact with anyone. He walked around for approximately 15 to 30 minutes before he observed discarded food in the street at the intersection of Rosewood Street between White Plains Road and Olinville Avenue. Fearing a cat might go into the street to eat the food and get hit by a car, § 87(2)(b) entered a nearby deli and asked to borrow a broom to sweep the food away. While holding the broom in one hand and the baseball bat tucked under his other arm, § 87(2)(b) walked toward the deli exit. Sgt. Zeitoun opened the deli door with his left hand, while holding a Taser pointed towards the ground in his right hand. Sgt. Zeitoun said, “Do you have a problem?” § 87(2)(b) exited the store and said, “Excuse me?” PO Venezia stood next to Sgt. Zeitoun. Sgt. Zeitoun pointed the Taser at § 87(2)(b) and said, “Don’t move.” § 87(2)(b) described himself to the investigation as a 42-year-old, 5’11” tall, 260-pound Black man (**Board Review 08**).

The BWC footage did not capture this portion of the incident. However, in PO Venezia’s BWC footage (**Board Review 01**), at the 00:20 minute-mark of the media player timestamp (visible at the bottom of the screen), § 87(2)(b) is captured wearing black gloves.

Event documents (**Board Review 09**) revealed that at 7:13pm, § 87(2)(b) identified via investigation, called 911 and stated that there was a Black male in his 50s,

approximately 6'1" tall and 240 pounds, wearing black gloves, walking up and down in the vicinity of Olinville Avenue and Rosewood Street in the Bronx, while looking down and carrying a baseball bat. § 87(2)(b) reported that the man walked past a woman and that the woman looked scared and that the man looked "sick in the head." At 7:22pm, Sgt. Zeitoun and PO Venezia arrived.

The request for the 911 call audio and police radio dispatch communications recording was returned negative, because § 87(2)(b) filed this complaint 14 months after this incident occurred which is past the 12-month retention period for this evidence (**Board Review 10**).

§ 87(2)(b) provided a brief phone statement to the investigation (**Board Review 11**). He said he called 911 to report a Black man, who he believed was potentially intoxicated because he was "menacing" an unidentified individual with a baseball bat by swinging the bat and pointing it in that individual's face. § 87(2)(b) was unable to further describe how the man was wielding the bat. The man with the bat left the location and § 87(2)(b) did not speak with any officers or the 911 operator again after his initial 911 call, nor did he witness any officers interact with the man with the bat. § 87(2)(b) phone statement was obtained approximately 18 months after the incident.

Sgt. Zeitoun (**Board Review 12**) and PO Venezia (**Board Review 13**) provided statements that were generally consistent with each other. They were assigned the radio run regarding the aforementioned event, which they said was for an Emotionally Disturbed Person ("EDP") with a baseball bat. The radio run included a physical description of the EDP. Sgt. Zeitoun stated that the radio run noted that the EDP was "swinging" the bat at people, and PO Venezia stated that the radio run noted that the EDP was "menacing" the 911 caller with the bat. Upon their arrival, they observed § 87(2)(b) who fit the description provided in the radio run, holding a broom with a bat tucked under his arm with the handle pointed forward. They approached and PO Venezia told § 87(2)(b) that they had received a call regarding an individual menacing someone with a bat who fit his description, and that they were trying to find out what was going on. Sgt. Zeitoun and PO Venezia ordered § 87(2)(b) to put the bat and broom down. § 87(2)(b) did not comply and asked why he was being stopped.

Sgt. Zeitoun stated that as he approached § 87(2)(b) he unholstered his Taser and pointed it at him because of the information provided in the radio run, because Sgt. Zeitoun thought it was abnormal that § 87(2)(b) was walking around with a bat and a broom, because both of those objects could have been used to cause serious physical injury, and because § 87(2)(b) clothes were disheveled and dirty, which led Sgt. Zeitoun to believe he was potentially an EDP. Sgt. Zeitoun pointed his Taser at § 87(2)(b) prior to issuing any verbal commands because if he had not had his Taser at the ready and § 87(2)(b) had not complied with the officers' commands and used the bat or broom as a weapon, § 87(2)(b) could have inflicted serious physical harm before Sgt. Zeitoun had the chance to utilize his Taser.

§ 87(2)(b) and the officers provided somewhat consistent statements regarding § 87(2)(b) reporting that § 87(2)(b) had been "menacing" an individual with a baseball bat. In contrast, the event documents note that § 87(2)(b) reported that § 87(2)(b) was only walking while carrying a baseball bat, that he passed a woman who "looked scared," and that he looked "sick in the head." Due to § 87(2)(b) filing this complaint over a year after the incident, the investigation was unable to obtain the 911 call audio and police radio communications and was therefore unable to confirm what information § 87(2)(b) reported to 911 or what information dispatch then relayed to the officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations A & B** be closed as **Unsubstantiated**.

Allegation (C) Discourtesy: Police Officer Justin Venezia acted discourteously toward § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Justin Venezia threatened § 87(2)(b) with the use of force.

Allegation (E) Abuse of Authority: Sergeant Robert Zeitoun threatened § 87(2)(b) with the use of force.

PO Venezia's BWC footage (**Board Review 01**) begins with PO Venezia standing just outside the deli entrance and to § 87(2)(b) right. PO Venezia says, "Because we got a call about you, you just need to talk to us, and we'll let you go on your way." § 87(2)(b) is holding the broom in his right hand, and as PO Venezia speaks, § 87(2)(b) moves the broom handle around in close proximity to PO Venezia's face. At the 00:03 minute-mark of the media player timestamp (visible at the bottom of the screen), PO Venezia slaps the broom out of § 87(2)(b) hand. PO Venezia then says, "Keep that out of my face, and second of all, talk to me or you're going to get Tased." § 87(2)(b) says, "Don't be knocking things out of my hand." At 00:08, § 87(2)(b) bends down and attempts to pick the broom up, but PO Venezia picks it up first and places it on the ground behind him, out of § 87(2)(b) reach. The laser dot from Sgt. Zeitoun's Taser is visible on § 87(2)(b) torso.

In Sgt. Zeitoun's BWC footage (**Board Review 02**) at the 00:13 minute-mark of the media player timestamp (visible at the bottom of the screen), just after § 87(2)(b) attempted to retrieve the broom from the ground, Sgt. Zeitoun says "You're going to get Tased" twice while pointing his Taser at § 87(2)(b).

§ 87(2)(b) said upon exiting the deli and being stopped by the officers, he asked, "What's the problem?" and PO Venezia hit the broom, causing it to fall out of § 87(2)(b) hand and onto the ground. § 87(2)(b) did not mention Sgt. Zeitoun threatening to Tase him.

PO Venezia's statement was generally consistent with the BWC footage. He acknowledged slapping the broom away and out of § 87(2)(b) hand and said he did so because he was worried § 87(2)(b) was about to hit him with the broom, which had been near his face. PO Venezia did not recall saying, "Keep that out of my face, and second of all talk to me or you're going to get Tased." Upon reviewing his BWC footage, he acknowledged hearing himself make that statement, but said he did not have an independent recollection of saying it and did not know why he said it.

Sgt. Zeitoun said when they first approached § 87(2)(b) the officers ordered him to drop the bat. Because § 87(2)(b) refused to drop the bat and broom, Sgt. Zeitoun verbally warned him that if he did not comply, Sgt. Zeitoun would Tase him.

The mission of the New York City Police Department includes valuing human life, respecting the dignity of each individual, and rendering services with courtesy and civility while enforcing the law, preserving peace, protecting people, and maintaining order. NYPD Patrol Guide, Procedure 200-02 (**Board Review 14**). Tasers should only be used against persons who are exhibiting active aggression or actively resist (use physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody), or to prevent individuals from physically injuring themselves or other persons present. It is strictly prohibited to use Tasers on persons as a form of coercion on persons who passively resist (use minimal physical action to prevent an officer from performing their lawful duty). NYPD Patrol Guide, Procedure 221-08 (**Board Review 15**).

The BWC footage captures § 87(2)(b) waving the broom handle in close proximity to PO Venezia's face. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Exonerated**.

§ 87(2)(g) by the time PO Venezia threatened to Taser § 87(2)(b) PO Venezia had already removed the broom from § 87(2)(b) possession. Though § 87(2)(b) still possessed the baseball bat at the time the threat was made, § 87(2)(g)

§ 87(2)(g) was not obligated to speak with the officers. § 87(2)(g)

it is recommended that **Allegation D** be closed as **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Unsubstantiated**.

Allegation (F) Discourtesy: Sergeant Robert Zeitoun spoke discourteously to § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Robert Zeitoun threatened § 87(2)(b) with the use of force.

In PO Venezia's BWC footage (**Board Review 01**), after PO Venezia removes the broom from § 87(2)(b) hand, at the 00:13 minute-mark of the media player timestamp (visible at the bottom of the screen), PO Venezia tells § 87(2)(b) "Talk to me" then orders § 87(2)(b) to "put the bat down" several times. At 00:23, § 87(2)(b) leans the bat against the wall next to the deli entrance directly behind him. At 00:26, § 87(2)(b) requests PO Venezia verify that the officers actually received a call regarding him, and PO Venezia requests that dispatch repeat the description provided by the 911 caller. In Sgt. Zeitoun's BWC footage (**Board Review 02**) at the 00:38 minute-mark of the media player timestamp (visible at the bottom of the screen), after § 87(2)(b) had put down the bat and as PO Venezia requests dispatch repeat the description provided by the 911 caller, Sgt. Zeitoun instructs PO Venezia to move back from § 87(2)(b). At 00:44, Sgt. Zeitoun says to § 87(2)(b) "Dude, you make one move and I'm going to fucking Tase you" twice. § 87(2)(b) replies, "Shut up, spick."

In PO Venezia's BWC footage (**Board Review 01**) at the 00:55 minute-mark of the media player timestamp (visible at the bottom of the screen), dispatch repeats the description provided by the 911 caller and § 87(2)(b) argues that he is allowed to walk with a baseball bat and complains that the officers were "driving around staring at [him]." At 02:17, § 87(2)(b) tells PO Venezia to give him back the broom and says he is ready to leave. PO Venezia asks Sgt. Zeitoun, "Are we getting a bus?" Sgt. Zeitoun says yes. At 03:56 and 05:23, additional uniformed officers arrive as they wait for the ambulance. PO Venezia asks § 87(2)(b) multiple times why he has a bat and if he had any interaction with anyone who would have called 911 to report that he was menacing them with the

bat. § 87(2)(b) denies having any such interaction. At 07:13, Sgt. Zeitoun can be seen pointing his Taser at § 87(2)(b). At 08:30, an officer tells § 87(2)(b) he is going to be placed in handcuffs and examined by an EMT. Officers step towards § 87(2)(b) including Sgt. Zeitoun, who points his Taser at § 87(2)(b) then lowers it and walks away. At no point do officers order § 87(2)(b) to step away from the bat or attempt to move the bat further away from § 87(2)(b).

§ 87(2)(b) said Sgt. Zeitoun pointed his Taser at him after he exited the deli, and that he lowered his Taser once § 87(2)(b) was handcuffed, though he did not holster it and kept it pointed at the ground. § 87(2)(b) did not mention Sgt. Zeitoun's threat to Tase him that is captured in the BWC footage.

Sgt. Zeitoun acknowledged threatening to Tase § 87(2)(b) after he had put down the baseball bat and he acknowledged using the word "fucking" when doing so. He said this because it was a "heated exchange" where PO Venezia was standing a couple of feet away from § 87(2)(b) and though § 87(2)(b) had put the bat down, it was still within § 87(2)(b) reach and considered to be a potentially lethal weapon. Additionally, earlier in the incident, § 87(2)(b) had not been complying with the officers' orders and had waved a broom handle in PO Venezia's face, and § 87(2)(b) demeanor was "agitated," described as cursing at Sgt. Zeitoun and calling him racist epithets. For these reasons, Sgt. Zeitoun acknowledged keeping his Taser pointed at § 87(2)(b) for almost the entire incident, up until § 87(2)(b) was handcuffed.

PO Venezia did not recall if Sgt. Zeitoun had his Taser pointed at § 87(2)(b) though he said he admittedly stood too close to § 87(2)(b) who he described as a suspected EDP with a lethal weapon, and that this put PO Venezia at risk of physical harm.

Officers have a responsibility to act with decorum in their interactions with civilians, though there are certain situations where profane remarks made during a stressful or chaotic situation do not constitute misconduct. DAO-DCT Disciplinary Case No. 2018-18951 (Board Review 16). Tasers should only be used against persons who are exhibiting active aggression or actively resist (use physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody), or to prevent individuals from physically injuring themselves or other persons present. It is strictly prohibited to use Tasers on persons as a form of coercion on persons who passively resist (use minimal physical action to prevent an officer from performing their lawful duty). NYPD Patrol Guide, Procedure 221-08 (**Board Review 15**).

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **Exonerated**.

§ 87(2)(g)

§ 87(2)(b) the BWC footage depicts that at the time Sgt. Zeitoun said, "Dude, you make one move and I'm going to fucking Tase you," § 87(2)(b) was no longer in possession of the broom or the bat and was not making any statements or movements to suggest he would attempt to retrieve those items, nor was he otherwise exhibiting any active aggression toward the officers. Further, the BWC footage does not depict the officers taking any actions § 87(2)(g)

§ 87(2)(b) such as ordering § 87(2)(b) to move elsewhere. § 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **Substantiated**.

Allegation (H) Abuse of Authority: Police Officer Josue Batista frisked § 87(2)(b)

Allegation (I) Abuse of Authority: Police Officer Josue Batista searched § 87(2)(b)

In Sgt. Zeitoun's BWC footage (**Board Review 01**), at the 02:27 minute-mark of the media player timestamp (visible at the bottom of the screen), § 87(2)(b) tells PO Venezia to give him the broom back and PO Venezia says § 87(2)(b) can have the broom back when he is ready to leave. § 87(2)(b) says, "I'm ready to leave now," and PO Venezia asks Sgt. Zeitoun, "Are we getting a bus?" Sgt. Zeitoun says yes.

In PO Batista's BWC footage (**Board Review 03**), at the 05:26 minute-mark of the media player timestamp (visible at the bottom of the screen), § 87(2)(b) is placed in handcuffs. At 05:40, an officer tells § 87(2)(b) that he is not under arrest and that he is going to be assessed by EMTs. At 05:53, PO Batista frisks § 87(2)(b) pants pockets, places his hand inside § 87(2)(b) pockets, removes two small unidentified objects and § 87(2)(b) wallet, and immediately returns each item back to the pocket from which they were removed.

§ 87(2)(b) statement regarding being frisked and his pockets being searched was consistent with the BWC footage.

PO Batista (**Board Review 17**) said he handcuffed § 87(2)(b) and acknowledged frisking and searching him for weapons prior to § 87(2)(b) being placed inside an ambulance to ensure he would not be able to hurt himself or medical staff. PO Batista patted down § 87(2)(b) pants pockets and around his waist and reached his hands inside § 87(2)(b) pockets for any knives or blunt objects. There were no bulges on § 87(2)(b) clothes that suggested he was armed or in possession of anything that he could use to hurt himself or others. The only indication PO Batista had that § 87(2)(b) was armed was that the original 911 call stated that he was walking around with a bat, though at the time of the search, § 87(2)(b) had already put the bat down. The search yielded negative results for weapons.

Neither Sgt. Zeitoun nor PO Venezia recalled PO Batista frisking or searching § 87(2)(b) (in Sgt. Zeitoun's BWC footage (**Board Review 02**), at the 09:04 minute-mark of the media player timestamp (visible at the bottom of the screen) Sgt. Zeitoun walks away from § 87(2)(b) as he is being handcuffed, engages in a brief conversation with PO Venezia, then enters the deli and speaks with a deli employee). Both Sgt. Zeitoun and PO Venezia both stated that generally, violent EDPs are frisked for weapons or things that could be used as a weapon before being placed inside an ambulance for the safety of EMS personnel, members of service, and the individual.

An EDP is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. Officers are authorized to take EDPs into protective custody, after which they are instructed to remove any property that is dangerous to life and then place the individual in an ambulance to be taken to a hospital. NYPD Patrol Guide, Procedure 221-13 (**Board Review 18**). Officers may only enter someone's pockets to remove items felt during a frisk when the officer reasonably suspects there is a weapon. NYPD Patrol Guide, Procedure 221-11 (**Board Review 19**). Without particularized suspicion to fear for his safety or that of his fellow officers, an officer lacks justification for searching an individual's pants pockets. People v. Johnson, 277 A.D.2d 875 (**Board Review 20**).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation H** be closed as **Exonerated**. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] The BWC footage confirms that PO Batista reached into § 87(2)(b) pockets and removed objects, one being a wallet, § 87(2)(g)
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation I** be closed as **Substantiated**.

Allegation (J) Abuse of Authority: Police Officer Josue Batista searched § 87(2)(b) said that after he was placed inside the ambulance, while the EMTs were outside of the ambulance speaking with officers, PO Batista entered the ambulance, opened § 87(2)(b) backpack and searched through it without saying anything.

This part of the incident is not captured in BWC footage § 87(2)(g), § 87(4-b) PO Batista did not provide a reason as to why he deactivated his BWC before § 87(2)(b) was placed inside the ambulance

PO Batista did not recall if he searched § 87(2)(b) backpack inside the ambulance, but explained that generally, when an individual is removed to the hospital as an EDP, “we search everything.” PO Batista was unsure if he was the officer who searched § 87(2)(b) backpack or if another officer did so. PO Batista acknowledged escorting § 87(2)(b) to the hospital in the cab of the ambulance, though he could not recall if any other officers were present.

EMT § 87(2)(b) (**Board Review 21**) and EMT § 87(2)(b) (**Board Review 22**) were interviewed and said they did not recall an officer searching § 87(2)(b) backpack in their presence.

Officers are authorized to take EDPs into protective custody, after which they are instructed to remove any property that is dangerous to life and then place the individual in an ambulance to be taken to a hospital. NYPD Patrol Guide, Procedure 221-13 (**Board Review 18**). Constitutional protections against unreasonable searches and seizures are not limited to private premises, and a person may have a legitimate expectation of privacy in a container such as a bag. People v. Ramirez-Portoreal, 88 N.Y.2d 99 (**Board Review 23**). Officers may not search or seize property without first obtaining a warrant. United States v. Jacobsen, 466 U.S. 109 (**Board Review 24**).

Though PO Batista could not recall if he was the officer who searched § 87(2)(b) backpack, he acknowledged that § 87(2)(b) backpack was searched and that he was inside the ambulance with § 87(2)(b) who identified him as the subject of this allegation. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **Allegation J** be closed as **Substantiated**.

Allegation (K) Abuse of Authority: Officers forcibly removed § 87(2)(b) to the hospital.

According to event documents, while this event type was originally noted as “Investigate Possible Crime: Suspicious Person/Prowler Outside,” the event type was changed to “Ambulance Case: EDP Outside, Has a Weapon” within minutes, which meant that Emergency Service personnel were dispatched to the location as a matter of procedure.

§ 87(2)(b) said that inside the ambulance, two EMTs asked him questions. The EMTs then had a conversation with an officer outside of the ambulance, though § 87(2)(b) could not hear what was said. One of the EMTs returned inside the ambulance and told § 87(2)(b) that he was going to be taken to the hospital. § 87(2)(b) asked why and the EMT said, “Because you were carrying a baseball bat.” § 87(2)(b) was transported to § 87(2)(b) Hospital, where he was admitted to the psych ward § 87(2)(b) § 87(2)(a) – PHL 18(6)

EMT § 87(2)(b) and EMT § 87(2)(b) provided generally consistent statements. After officers handcuffed § 87(2)(b) and placed him inside the ambulance, EMT § 87(2)(b) and EMT § 87(2)(b) interviewed § 87(2)(b). They specifically asked him about what had just happened, his state of mind, if he had any psychological/medical history, if he wanted to hurt himself or others, and if he was hearing any voices. This was done to determine if § 87(2)(b) needed to be taken to the hospital for a mental health evaluation. EMT § 87(2)(b) said based on § 87(2)(b) answers to these questions, he believed § 87(2)(b) may have posed a danger to himself or others. EMT § 87(2)(b) deemed it necessary for § 87(2)(b) to receive a psychiatric evaluation because he stated that he wanted to hurt others, though EMT § 87(2)(b) could not recall who § 87(2)(b) said he wanted to hurt.

When a person in need of medical aid or assistance is in the care of emergency medical personnel, the authority and responsibility for the medical care of that person rests solely with the medical personnel. Officers concerned shall cooperate with medical personnel in every reasonable manner. NYPD Patrol Guide, Procedure 216-01 (**Board Review 27**).

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **Exonerated**.

Allegation (L) Discourtesy: Sergeant Robert Zeitoun spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Zeitoun called him a “motherfucker” approximately three times during this incident, though § 87(2)(b) could not recall at what points. Sgt. Zeitoun denied calling § 87(2)(b) a “motherfucker” and PO Venezia did not recall hearing Sgt. Zeitoun doing so. The BWC footage does not capture Sgt. Zeitoun calling § 87(2)(b) a “motherfucker,” but the footage does not capture the entirety of this incident.

§ 87(2)(g)

It is therefore recommended that **Allegation L** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b)
[REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
- Sgt. Zeitoun has been a member of service for 13 years and has been named a subject in 10 additional complaints, comprised of 26 allegations, none of which were substantiated.
 - PO Venezia has been a member of service for seven years and this is the first complaint in which he has been named a subject.
 - PO Batista has been a member of service for four years and has been named a subject in two additional complaints, comprised of two allegations, neither of which was substantiated.
- § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of December 6, 2021, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office regarding this incident (**Board Review 30**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 13

Investigator:	<u>Inv. Emma Stydahr</u> Signature	<u>Inv. Emma Stydahr</u> Print Title & Name	<u>12/17/2021</u> Date
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Squad Leader:	<u>IM Laura Kastner</u> Signature	<u>IM Laura Kastner</u> Print Title & Name	<u>12/17/2021</u> Date
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